

INCORPORATION OF THE OPERATOR JSC

Incorporation of the Operator JSC

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Incorporation of the Operator JSC and Regulatory Registration

Document: project for the incorporation of the operator legal entity and the plan of parallel regulatory registrations. **Goal:** to close the RED flags B5 (no corporate operator) and B6 (no Roskomnadzor registration) of the consolidated audit of 24.05.2026. **Author of the concept and sole founder:** Abdul-Khakim Akhmadovich Kagirow (deposit certificate No. 4011265 of 19.12.2024). **Date:** 24.05.2026.

1. Corporate structure

1.1. Type of legal entity

JSC "CP RSFSR" (non-public joint-stock company, art. 7 of Federal Law No. 208-FZ of 26.12.1995 "On Joint-Stock Companies").

Reasons for the choice of form:

- Compliance with art. 5 part 1 of 259-FZ (the requirement for the operator of a DFA-issuance IS — a non-public JSC, an LLC or a credit institution).
- Allows targeted work with investors via the issue of preferred shares.
- Permits participation in interagency projects of the VEB.RF / Ministry of Economic Development level.

1.2. Share capital and own funds

Notice (legal distinction under 208-FZ vs CBR Directive 4336-U): the share capital (art. 25 of 208-FZ) and the own funds of the DFA-IS operator (CBR Directive 4336-U as developed from 779-P) are different categories. Obtaining the status of an operator of a DFA IS simultaneously requires:

- **Share capital of the JSC:** not less than ₹100,000 (the minimum under art. 26 of 208-FZ for a non-public JSC). At incorporation, ≥ ₹10,000,000 of paid-up ordinary shares is planned.
- **Own funds (capital) ≥ ₹50,000,000** (the requirement of clause 1.2 of CBR Directive 4336-U). Formed from paid-up share capital, share premium, retained earnings and other sources under the CBR methodology. Confirmed by an auditor's opinion.

Structure as at incorporation:

- 100% of ordinary shares — with the founder.
- A share capital of ≥ ₹10 mn + contribution to additional capital / share premium after the Seed round provide aggregate own funds of ≥ ₹50 mn by the time of filing with the register of operators of DFA ISs.
- At later rounds — the issue of preferred shares with special rights (protection against dilution of control).

1.3. Officers (compliance with 779-P)

POSITION	779 - P REQUIREMENT	APPOINTMENT TIMING
General Director	Higher economic / legal education; ≥ 3 years of experience in senior positions in the financial sector; qualification match	T+1 mo. after incorporation
Chair of the Board of Directors	Independent; reputation confirmed	T+2 mo.
Head of Compliance (HOC)	ICA / IRM / ACAMS certificate or equivalent; ≥ 5 years in AML/KYC	T+2 mo.
Chief Information Security Officer (CISO)	FSTEC certificate; ≥ 5 years on CII-1 / UZ-1	T+2 mo.
Chief Counsel	Specialisation in 259-FZ / 779-P / 152-FZ	T+1 mo.
Chief Risk Officer (CRO)	FRM / PRM or equivalent	T+3 mo.
Internal Auditor	Member of an SRO of auditors	T+3 mo.

POSITION	779 - P REQUIREMENT	APPOINTMENT TIMING
Chief Accountant	Compliance with art. 7 of Federal Law No. 402 - FZ "On Accounting", and the requirements of art. 11.1 of 86 - FZ for officers of financial infrastructure	T+1 mo.

1.4. Founding documents

Within the incorporation, the following package is prepared:

- 1. **Charter of JSC "CP RSFSR"** (based on the model charter, with special provisions under 779-P).
- 2. **Sole founder's resolution** on the incorporation of the JSC.
- 3. **Agreement on the incorporation of the JSC.**
- 4. **Application for state registration** (form P11001) to the Federal Tax Service.
- 5. **Document confirming payment of the share capital** (at incorporation — not less than 50% of the share capital).

Preparation of the package — **T+0...T+2 mo.** from the decision to launch.

1.5. Ownership structure (target)

STAGE	FOUNDER	INVESTOR	STATE CAPITAL	TOP MANAGEMENT (ESOP)
Incorporation	100%	—	—	—
After the RUB 1.8 bn (USD 25M) round	85.8%	9.21%	—	5.0% (ESOP)
After Series A (T+18 mo.)	64%	25%	—	11% (ESOP + new)
After Series B with state capital (T+36 mo.)	48%	25%	15%	12%

2. Placement on regulatory registers (in parallel with incorporation)

2.1. Registration as a personal-data operator (art. 22 of 152-FZ)

Timing: notification to Roskomnadzor — **T+0.5 mo.** (before any processing of users' personal data in the demo app begins).

Contents of the notification:

- The purposes of PD processing.
- Categories of PD (name, INN, SNILS, biometrics under 572-FZ, passport data).
- Categories of PD subjects.
- The list of actions (collection, recording, systematisation, storage, use, transfer, deletion).
- A description of protection measures (Government Resolution No. 1119, FSTEC Order No. 21 / FSB orders).
- Information on cross-border transfers (absent).
- The start date of processing.
- The processing term.

Status as at 24.05.2026 in the demo app: real PD is not collected; the Roskomnadzor notification is filed concurrently with the registration of the JSC, in order to exclude the offence under art. 13.11 of the Code of Administrative Offences.

2.2. Registration with Rosfinmonitoring (115-FZ)

Timing: **T+1 mo.** Appointment of the special AML/CFT officer; development of the IC Rules (Internal Control Rules); registration in the Rosfinmonitoring personal account.

2.3. Application to the register of DFA-IS operators (Bank of Russia, 779-P)

Timing: **T+3...T+6 mo.** after incorporation of the JSC and assembly of the complete documentation package.

Contents of the application:

- Founding documents of the JSC.
- Information on officers (under 779-P).
- IS rules (art. 6 of 259-FZ).
- Description of the DLT infrastructure (with a specific DLT vendor: Masterchain / equivalent).
- Protection measures under GOST R 57580.1 level 4.

- FSTEC / FSB opinion.
- Independent IS-audit opinion.
- Documents confirming compliance with 779-P (business continuity, operational risk under 716-P, CIPF).
- Operator's business plan (based on 04_Бизнес-план/Бизнес-план_ЦП_РСФСР.md after refactor).
- Financial model (based on 03_Финансовая_модель/Финансовая_модель_ЦП_РСФСР.md after refactor).

2.4. Categorisation as CII (187-FZ, Government Resolution No. 127)

Timing: T+6...T+12 mo. (after actual operation). Filing of the categorisation application with FSTEC; expected category — **1st (a significant CII facility)**.

2.5. Certification of CIPF (FSB) and information-protection means (FSTEC)

Timing: T+9...T+18 mo. Obtaining FSB certificates for CIPF (CryptoPro / SignalCom / equivalent) and FSTEC certificates for perimeter-protection means.

2.6. Applications to Rospatent for registration of computer programs (art. 1262 of the CC)

Timing: T+1...T+3 mo. Registration of four components:

1. Mobile application (PWA + Capacitor builds).
2. Backend.
3. Operator's DLT node.
4. KYC module.

2.7. Trademark application (art. 1477 of the CC)

Timing: T+1 mo. Application for registration of the word signs "CP RSFSR" and "RSFSR" in Nice Classes 9 (software), 36 (financial services), 42 (scientific and technical services).

2.8. Request to the Ministry of Finance (art. 34.2 of the Tax Code)

Timing: T+2 mo. Written request to the Ministry of Finance to obtain an official tax qualification of:

- the swap of the initial DFA for an infrastructural one (art. 39 of the Tax Code vs art. 282.2);
- the operator's status as a tax agent under arts. 226.1 / 214.11 of the Tax Code;

- the VAT status of DFA operations in the new wording of sub-clause 12.2 of clause 2 of art. 149 of the Tax Code;
- the status for simplified identification of operations under part 1.4-2 of art. 7 of 115-FZ.

2.9. Application to the Regulatory Legal regime (258-FZ)

Timing: T+3 mo. Application to the Department of Financial Technologies of the Bank of Russia to conduct pilot-light (see `04_Бизнес-план/Wedge_pilot-light.md`) under an experimental legal regime.

3. Aggregate incorporation roadmap

MONTH	ACTION
T+0	Decision to launch; circulation of the concept to the sole founder
T+0.5	Roskomnadzor notification of PD processing
T+1	Filing of the JSC registration documents with the FTS; appointment of the General Director, Chief Counsel, Chief Accountant
T+1	Trademark application to Rospatent
T+1	Rospatent applications for the registration of computer programs
T+2	Appointment of the CISO, Head of Compliance, Chair of the Board of Directors
T+2	Registration with Rosfinmonitoring; approval of the IC Rules
T+2	Request to the Ministry of Finance on tax qualification (art. 34.2 of the Tax Code)
T+3	Appointment of the CRO, Internal Auditor
T+3	Application to the Bank of Russia experimental legal regime
T+3	Preparation of the document package for the application to the DFA-IS operators' register
T+6	Filing of the application to the Bank of Russia register of DFA-IS operators (779-P)
T+9	Start of CIPF / protection - means certification

MONTH	ACTION
T+12	Categorisation as CII (upon actual operation)
T+18	Receipt of all profile certificates
T+24	Pilot-light launch under the active 259-FZ (see the wedge document)

4. Legal risks closed by this document

AUDIT RED FLAG	CLOSURE
B5 No corporate operator legal entity	Incorporation of a JSC with share capital $\geq$ ₹50 mn; plan to appoint officers under 779-P
B6 Personal-data operator not registered with Roskomnadzor	Roskomnadzor notification at T+0.5 mo.; until then no real PD is collected
B2 Advertising of an unlicensed financial service in RuStore	The RuStore description has been moved to an informational-demonstration register; a disclaimer on the legal status has been added (see 09_Мобильное_приложение/Публикация_RuStore/01_Описание_приложения.md)
A-legal AMBER A1 Taxes on the DFA swap	Ministry of Finance request under art. 34.2 of the Tax Code at T+2 mo.
A-legal AMBER A2 Tax-agent status	Within the Ministry of Finance request
A-legal AMBER A5 CII categorisation	Filing after 6 months of actual operation
A-legal AMBER A6 258-FZ legal regime	Application to the Bank of Russia FinTech Department at T+3 mo.

5. Timeline and funding of initial regulatory activity

ITEM	₽ MN	TIMING
JSC incorporation (state fees, legal support, notary)	0.2	T+0...T+2 mo.
Rospatent applications (4 computer programs + trademark)	0.3	T+1 mo.
Preparation of the 779-P register package	8.0	T+3...T+6 mo.
Preparation of the Rosfinmonitoring IC Rules	0.8	T+1...T+2 mo.
Roskomnadzor notification	0.1	T+0.5 mo.
Legal support of incorporation (external consultant, 9 mo.)	14.0	T+0...T+9 mo.
Ministry of Finance tax opinion (legal component)	1.2	T+2 mo.
TOTAL (first block of regulatory expenses)	24.6	

This amount is included in the starter round of RUB 1.8 bn (USD 25M).

Preparation date: 24.05.2026. **Prepared:** in the context of remediation of the RED flags of the consolidated audit; a unified SoT for the project's regulatory contour.